

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: September 14, 2026

Time: 2:00 PM

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1	Sullivan v. Strathspey Crown Holdings Group, LLC	Before the Court is the motion for summary judgment or, in the alternative, summary adjudication filed by defendants Strathspey Crown Holdings Group, LLC fka Strathspey Crown Holdings, LLC ("SCHG"), Crown Holdings, LLC fka Strathspey Crown, LLC ("CH"), Robert Grant ("Grant"), and Vikram Malik ("Malik") (collectively, "Defendants") directed to the complaint of plaintiffs Dr. Patrick Sullivan, Dr. Harvey Carter, Dr. Mitchell Brown, Dr. Per Heden, Dr. Simeon Wall, Jr., Dr. Patrick Maxwell, Dr. William P. Adams, Jr., Frank Bumstead, Dr. Sanjay Grover, Dr. Brad Calobrace, and Dr. David Mordaunt (collectively, "Plaintiffs"). As set forth below, the motion is DENIED as to the first through fifth causes of action and the seventh cause of action and GRANTED as to the sixth cause of action. A defendant can obtain summary judgment by showing that an essential element of plaintiff's claim cannot be established. Defendant does so by presenting evidence that plaintiff "does not possess and cannot reasonably obtain, needed evidence." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 854; see Code Civ. Proc., § 437c(p)(2).)

Defendant does not satisfy its burden of proof by producing evidence that does not exclude the possibility that plaintiffs may possess or may reasonably obtain evidence sufficient to establish their claim. (*Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1441-1442.)

"There is no obligation on the opposing party ... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing *every element* ... necessary to sustain a judgment in his favor." (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468 (emphasis in original; internal quotes omitted).)

In ruling on a motion for summary judgment, the court must "consider all of the evidence" and all of the "inferences" reasonably drawn therefrom (CCP § 437c(c)) and must view the evidence and inferences "in the light most favorable to the opposing party." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843; see *Ragland v. U.S. Bank Nat'l Ass'n* (2012) 209 Cal.App.4th 182, 199.)

The moving party's declarations and evidence will be strictly construed in determining whether they negate an essential element of the plaintiff's claim "in order to resolve any evidentiary doubts or ambiguities in plaintiff's favor." (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.)

Declarations submitted on a motion for summary judgment must state evidentiary facts. Conclusions of fact or law are not sufficient. (*Hayman v. Block* (1986) 176 Cal.App.3d 629, 639; *Tuchscher Develop. Enterprises, Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal.App.4th 1219, 1240.)

First Cause of Action for Breach of Fiduciary Duty

As an initial matter, the parties agree that Delaware substantive law applies to Plaintiffs' claims. Defendants assert in footnote 6 of their motion that "because Delaware law and California law are substantially the same on the issues, Defendants have elected to cite the similar California law, except where there is no particular California law on point." (Motion p. 16, fn 6.) This ruling will thus cite to California law where Defendants have done so.

"The elements of a cause of action for breach of fiduciary duty are (1) the existence of a fiduciary relationship; (2) breach of fiduciary duty; and (3) damages." (*Sheley v. Harrop* (2017) 9 Cal.App.5th 1147, 1171.)

The Court finds Defendants failed to meet their initial burden of demonstrating the nonexistence of a triable issue of fact as to whether a breach occurred. The complaint alleges Defendants breached their fiduciary duties to Plaintiffs by, among other things, "spending investor money on personal expenditures," "awarding themselves, family members, and friends excessive compensation and management fees," and "engaging in multiple conflict of interest

transactions, in which they personally benefited at the expense of Plaintiffs.” (Complaint ¶ 141.)

With respect to the allegations that Defendants spent investor money on personal expenditures and awarded family members and friends excessive compensation, Defendants’ evidence on this point consists entirely of Grant’s and Malik’s statements that “Neither SCHG nor CH SCHG ever paid excessive compensation or management fees to any of my family members, friends, or me” and “Neither SCHG nor CH ever paid any of my personal expenses.” (Grant Decl., ¶¶ 26-27; Malik Decl., ¶¶ 19-20.)

Initially, this is not a clear statement that *Grant and Malik* never paid excessive compensation or management fees to their family and friends or that *Grant and Malik* never used company funds to pay their personal expenses. Additionally, the statements are conclusory. Grant and Malik offer no evidentiary facts to support these assertions. The declarations do not contain any facts regarding what compensation was paid to family members and friends, what information or documents were reviewed to support the conclusions, or otherwise showing how Grant and Malik reached their conclusion that no excessive compensation was paid to family members and friends. Defendants also presented no financial or corporate records to support the assertions. Defendants’ evidence does not exclude the possibility that Plaintiffs may possess or may reasonably obtain evidence sufficient to establish their claim. Defendants’ evidence is thus insufficient to meet their initial burden.

As to the conflict of interest transactions, Defendants contend there can be no breach because the PPM disclosed these anticipated types of transactions. However, as Defendants acknowledge and their own authority shows, an interested transaction is not a breach *if it is fair and reasonable*. (*Tenzer v. Superscope* (1985) 39 Cal.3d 18, 32.) Here, the complaint identifies several conflict of interest transactions. (See Complaint ¶¶ 98-103.) Defendants failed to offer any evidence pertaining to any of the identified transactions. Defendants thus failed to show these transactions were fair and reasonable. Defendants simply contend generally that related party or conflicted transactions “can allow SCHG’s managers to take active roles and safeguard the interests of SCHG and its members.” (Motion p. 17:13-14.) But without any discussion or evidence pertaining to the specific transactions alleged, it cannot be said as a matter of law that the subject transactions were fair and reasonable.

To the extent Defendants challenge other conduct alleged to constitute a breach of fiduciary duty, the Court need not reach these arguments. “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action...” (Code Civ. Proc., § 437c(f)(1).)

Based on the foregoing, Defendants failed to meet their initial burden of demonstrating the nonexistence of a triable issue of fact as to breach. The burden therefore did not shift to Plaintiffs.

The motion as to the first cause of action is **DENIED**.

Second Cause of Action for Fraudulent Misrepresentation

"The elements of fraud ... are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 638.) "A promise made without any intention of performing it constitutes fraud." (*Union Flower Market v. Southern Cal. Flower Market* (1938) 10 Cal.2d 671, 676.)

Defendants contend Plaintiff cannot establish an actionable misrepresentation because (1) there is no evidence that any challenged promise or statement is false or misleading, (2) there is no evidence to establish the scienter or an intent to defraud elements, and (3) Plaintiffs cannot establish any reasonable reliance or causation on statements made after they invested.

The fraud claim is based in part on allegations that "Defendants knowingly made false representations to induce Plaintiffs to invest in SCH and SC and continue investing in SC and SCH," including "that Plaintiffs would receive return of their full investment with 8% returns before any other investors or managers." (Complaint ¶ 147.) Defendants contend the promise was qualified by the express conditions in the PPM that required a "capital transaction" resulting in "distributable cash" before any distribution was made and Plaintiffs cannot disregard this condition in order to manufacture a fraud theory. Defendants argue the fact that distributions were not paid does not render the promise false.

Defendants' argument ignores the entire premise of Plaintiffs' complaint that Defendants engaged in a pattern of self-dealing and manipulation, misappropriation of funds, and inaccurate financial reporting, which essentially prevented Plaintiffs from receiving their 8% return. (See e.g., Complaint ¶¶ 2-4, 77-88, 104-109.) Simply because the PPM provided for conditions before Plaintiffs could receive their returns does not mean a fraudulent misrepresentation did not occur here. Defendants failed to show that the statement pertaining to Plaintiffs receiving an 8% return on their investment was not false or misleading.

In addition, Plaintiffs raised a triable issue as to whether the distribution promise to Plaintiffs was false or misleading and whether the statement was made with an intent to defraud. (See Plaintiff's Response to UMF Nos. 105-106, 111-116.)

The motion as to the second cause of action is **DENIED**.

Third Cause of Action for Negligent Misrepresentation

"The elements of a negligent misrepresentation are '(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable

reliance on the misrepresentation, and (5) resulting damage.’ ” (*Borman v. Brown* (2021) 59 Cal.App.5th 1048, 1060.)

Defendants contend Plaintiffs’ promissory fraud theories are not actionable as a negligent misrepresentation because California law does not recognize a claim for negligent false promise. Defendants also contend that to the extent any challenged statement is not a false promise, Plaintiffs cannot establish any statement was a misrepresentation that was made without reasonable ground for believing it to be true and with an intention to induce reliance.

The misrepresentations alleged in this cause of action include, among other things, that “the financial accounting of SCH and SC showed that SCH and SC were solvent entities with investments worth of millions of dollars,” and “there were strict controls to prevent fraud, waste, and abuse.” (Complaint ¶ 153.) These representations appear to be statements of past or existing fact and not promises of future performance. Defendants fail to discuss any specific statement alleged in the third cause of action, instead, arguing generally that Plaintiffs allege the same “promissory fraud theories.” Defendants therefore did not meet their burden of showing the foregoing statements are not an actionable misrepresentation.

Regarding Defendants’ second argument, Plaintiffs raised a triable issue as to whether the foregoing statements were a misrepresentation made without reasonable ground for believing it to be true and with an intent to induce reliance. (See Plaintiffs’ Response to UMF Nos. 141-142, 153-156.)

The motion as to the third cause of action is **DENIED**.

Fourth Cause of Action for Promissory Estoppel

“The elements of a promissory estoppel claim are ‘(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.’ ” (*US Ecology, Inc. v. State of California* (2005) 129 Cal.App.4th 887, 901.) “Because promissory estoppel is an equitable doctrine to allow enforcement of a promise that would otherwise be unenforceable, courts are given wide discretion in its application.” (*Id.*, at p. 902.)

Defendants contend the promises that Plaintiffs would receive an 8% return on their investment (what Defendants refer to as Plaintiffs’ “distribution theory”) and Grant and Malik would not receive distributions before Class B investors are duplicative of the contract theory and thus cannot form the basis for promissory estoppel. The cause of action, however, alleges additional promises made that Defendants do not assert are part of the contract claim. (See Complaint ¶ 158; Motion at p. 24:8-14.) The first argument is thus directed to only part of the cause of action and, as such, does not provide a basis to summarily adjudicate the promissory estoppel claim. (Code Civ. Proc., § 437c(f)(1).)

Defendants also contend the statements concerning solvency of the companies and strict controls pertain to present and historical facts and thus are not actionable under a promissory estoppel theory. The promissory estoppel claim is also based on allegations that Defendants promised "that liquidity events for Class B unit investors were planned, expected, and forthcoming." (Complaint ¶ 158.) Defendants failed to address this statement and thus failed to explain why this statement cannot support the promissory estoppel cause of action. The statement could reasonably be interpreted as referring to a promise of future performance.

The motion as to the fourth cause of action is **DENIED**.

Fifth Cause of Action for Breach of Contract

Defendants contend Plaintiffs cannot establish a breach of contract based on the alleged failure to pay Plaintiffs a distribution because they cannot demonstrate satisfaction of the contractual pre-conditions for distributions. Specifically, Defendants assert there never was any "capital transaction" resulting in "distributable cash" which would trigger the requirement for a distribution under the PPM.

The Court finds Defendants failed to meet their initial burden on this issue. The only evidence offered by Defendants on this point is the conclusory statement in their declarations that there never was a capital transaction that resulted in distributable cash. (Grant Decl., ¶ 15; Malik Decl., ¶ 8.) Defendants fail to offer any facts or evidence showing how they reached their conclusion. Grant and Malik do not explain what information or documents were reviewed to support the conclusion, they offer no discussion of what assets Defendants sold or acquired, and they submit no financial or corporate records to support the statement. The evidence is thus insufficient to meet Defendants' burden of proof.

Even if Defendants met their initial burden, Plaintiffs raised a triable issue as to whether a capital transaction resulting in distributable cash occurred and thus whether Defendants breached the contract by failing to pay Plaintiffs a distribution. (See Plaintiff's Response to UMF Nos. 168-169.)

The Court need not reach Defendants' remaining arguments as to the other alleged breaches and as to the allegation of breach of implied covenant of good faith and fair dealing stated within the breach of contract cause of action. "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action..." (Code Civ. Proc., § 437c(f)(1).)

The motion as to the fifth cause of action is **DENIED**.

Sixth Cause of Action for Conversion

Defendants are correct the conversion claim is based solely on Plaintiffs' contractual right to their investment funds plus 8% return

		and thus fails as a matter of law. (See Complaint ¶¶ 169-170; <i>Kuroda v. SPJS Holdings, L.L.C.</i>, 971 A.2d 872, 889-90 (Del. Ch. 2009) [dismissing conversion claim based solely on contractual right to money].) The motion as to the sixth cause of action is GRANTED. <u>Seventh Cause of Action for Accounting</u> Defendants contend the accounting cause of action is derivative of the breach of contract cause of action and fails because the breach of contract claim fails. As discussed above, the breach of contract claim remains viable. Therefore, the motion as to the seventh cause of action is DENIED. The Court declines to rule on Plaintiffs' evidentiary objections as not material to the disposition of the motion. (Code Civ. Proc., § 437c(q).) Plaintiffs shall give notice.
2	Melendez v. Highland Lumber Sales, Inc.	The demurrer of defendants Richard Phillips and Daniel LoBue (collectively, Moving Defendants) directed to the second amended complaint (SAC) of plaintiffs Griselda Melendez, individually, and as successor in interest to decedent Federico Galvan; Ivan Galvan; Roberto Galvan, Jr.; and Eduardo Galvan Melendez (collectively, Plaintiffs) is OVERRULED. Moving Defendants are to file an answer to the SAC within 20 days. Moving Defendants contend the SAC fails to allege facts sufficient to support an alter ego theory of liability to support its causes of actions of negligence and premises liability against Moving Defendants. The Court finds the SAC contains sufficient facts to support the allegations of alter ego liability against Moving Defendants. (See SAC ¶¶ 2, 15-16, 26-27.) The foregoing allegations are sufficient at the pleading stage to allege unity of interest and ownership between Moving Defendants and defendant S Olive St, LLC (S Olive) and an inequitable result if the acts are treated as those of S Olive alone. (<i>Sonora Diamond Corp. v. Superior Court</i> (2000) 83 Cal.App.4th 523, 538; <i>Associated Vendors vs. Oakland Meat Co.</i> (1962) 210 Cal.App.2d 825, 838-840.) Moving Defendants argue Plaintiffs failed to allege specific facts to support an alter ego theory, but Plaintiffs were required to allege only "ultimate rather than evidentiary facts." (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 550.) Based on the foregoing, the demurrer is OVERRULED. Counsel for Plaintiff shall give notice.
3	Montoya vs. Central	Defendants Central Oregon Truck Company, LLC ("Central" individually), and Lamarr Horne's (erroneously served as Ray

Oregon Truck Company, LLC	Lamarr)("Horne" individually; "Defendants" together with Central) motion to strike, or alternatively, motion for judgment on the pleadings is DENIED. As an initial issue, the court notes plaintiff Fabiola Sandra Cota Montoya ("Plaintiff") failed to file a proof of service regarding the opposition. Although it appears the opposition was served on Defendants as they were able to file a timely reply, the court cautions parties to file proofs of service moving forward or risk the court disregarding future pleadings. As to the merits of the motion, Defendants request the court strike from the complaint the following language: "negligently owned, entrusted, managed, maintained, drove, and operated" (Complaint ¶ 14.) "If, as here, an employer offers to admit vicarious liability for its employee's negligent driving, then claims against the employer based on theories of negligent entrustment, hiring, or retention become superfluous. To allow such claims in that situation would subject the employer to a share of fault in addition to the share of fault assigned to the employee, for which the employer has already accepted liability. To assign to the employer a share of fault greater than that assigned to the employee whose negligent driving was a cause of the accident would be an inequitable apportionment of loss." (<i>Diaz v. Carcamo</i> (2011) 51 Cal. 4th 1148, 1160 ("<i>Diaz</i>"); See, also <i>Jeld-Wen, Inc. v. Superior Ct.</i> (2005) 131 Cal. App. 4th 853, 866.) The first problem with Defendants' argument is there is no evidence before the court that Central has admitted to vicarious liability for the actions of Horne. No answer has been filed with the court, nor was one attached to the motion. Although Central attempted to file an answer back on June 17, 2026, it was rejected by the Clerk's office because it purported to be an answer to an amended complaint; but no amended complaint had been filed. The second problem is that Defendants improperly request the court strike more than the claim of negligent entrustment. The <i>Diaz</i> case considered only issues of respondeat superior and negligent entrustment. (<i>Diaz, supra</i>, 51 Cal. 4th at 1151 and 1152.) In the present matter, Plaintiff has not only alleged negligence on the part of Central by way of entrusting the subject vehicle to Horne, but Plaintiff has also alleged direct negligence on the part of Central by way of ownership, management, maintenance, and "operation" of the subject vehicle. Defendants' request to strike all the language requested is overbroad and essentially seeks to end any cause of action for Central's own negligence, which is improper at this time. As noted by the Supreme Court in <i>Diaz</i>: "We can conceive of instances in which the employer may be liable for negligence independent of its employee, for example, when the employer provides the driver with a defective vehicle. Here,
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		however, plaintiff's theory of employer Sugar Transport's separate liability was based solely on the theory of employer negligence in hiring and retaining Carcamo as a driver. As Sugar Transport's admission of vicarious liability triggered the principles of <i>Armenta</i>, [], we need not address other theories of employer liability, separate from and independent of the employee-driver's negligence." <i>Id.</i> at fn.1. Third, Central's concerns about discovery ring hollow. Specifically, Central contends discovery regarding "the driver qualification, training, supervision, safety, dispatch, prior-incident, and maintenance," will be "highly prejudicial to Central." Reply at p.4. But discovery regarding these matters go not only to Central's negligence, but also to the driver's own negligence. Even if the Court were to strike the claim for negligent hiring or retention, the issue whether the driver was qualified, properly trained, etc. is directly relevant to whether he was negligent. Although the motion to strike is denied, the Court will—assuming admission of vicarious liability--exclude evidence and argument at trial which is relevant only to negligent training, retention, etc. As to Defendants' alternative motion for judgment, Defendants put forth no real arguments. However, to the extent Defendants are relying on <i>Diaz</i> to request judgment on the pleadings, that too is improper. For judgment on the pleadings, Civ. Proc. Code § 438(c)(1)(B)(ii) requires that "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." A motion for judgment on the pleadings has the same function as a demurrer, and "[o]rdinarily, a general demurrer does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the demurrer will be overruled." (<i>Fire Ins. Exch. v. Superior Ct.</i> (2004) 116 Cal. App. 4th 446, 452.) As noted in the motion to strike section, at most, the phrase "entrusted" would be superfluous if Central accepts vicarious liability for the actions of Horne. Plaintiff has still alleged a general cause of action for negligence against Central. As such, the court cannot grant a motion for judgment on the pleadings as to only one word. The alternative request is also denied. Plaintiff to give notice.
4	Quick Bridge Funding, LLC v. Atlanta Home Professional Contractors, LLC, et. al.	Before the court is Plaintiff Quick Bridge Funding, LLC's unopposed Motion for Summary Judgment against Defendants Atlanta Home Professional Contractors LLC (Atlanta), Kennen Lock and James Adair. The motion is GRANTED, as set forth herein. On 3/5/26, Plaintiff filed a complaint alleging a cause of action for breach of contract against Atlanta and breach of guaranty against Lock and Adair. Attached as Exhibit 1 to the Complaint is the Business Loan Agreement dated 6/19/25 executed by Atlanta, along

with the concurrently executed Personal Guaranty executed by Lock and an Unconditional Guaranty executed by Adair.

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c(a)(1).)

Where a plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a "cause of action" entitling him or her to judgment. (Code Civ. Proc. § 437c(p)(1); S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co. (2010) 186 Cal.App.4th 383, 388.) This means that plaintiffs who bear the burden of proof at trial by a preponderance of evidence must produce evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not. "[O]therwise, he would not be entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 851; LLP Mortg. v. Bizar (2005) 126 Cal.App.4th 773, 776.) At that point, the burden shifts to defendant "to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto." (Code Civ. Proc. § 437c(p)(1).)

"The elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citation.]" (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821; *Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 968.) "A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty. [Citation.]" (*Gray1 CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, 486.)

Here, the Motion is supported by Sandra Otero, Chief Operating Officer of Plaintiff, who is one of the custodians of records kept by Plaintiff in the course of its business of financing loan transactions. Plaintiff has met its initial burden of production, as it has produced evidence to support each element of the causes of action for breach of contract and breach of guaranty. (Code Civ. Proc., § 437c(p)(1).) Further, plaintiff has submitted evidence showing that after crediting the payments received, the remaining unpaid loan balance is \$76,725. (Otero Decl. ¶8; Payment History at Exh. 2)

There is no opposition. Therefore, all of plaintiff's evidence is undisputed.

In light of the above, Plaintiff's unopposed motion for summary judgment is GRANTED.

The Case Management Conference on calendar for 9/14/26 is ordered vacated.

		Counsel for Plaintiff is ordered to give notice and submit a proposed judgment with a proof of service within 15 days
5	Doe 1 v. Crossline Community Church	O/C
6	Casares vs. City of Newport Beach	Defendant City of Newport Beach's ("Defendant") Motion for Summary Judgment is GRANTED. Defendant moves for summary judgment against plaintiff Kelly Casares's ("Plaintiff") complaint on the bases that 1) Plaintiff's lawsuit is barred by the statute of limitations; 2) Defendant is not liable to injuries caused by a plan or design; and 3) Plaintiff cannot establish Defendant had actual or constructive knowledge of a dangerous condition. (Civ. Proc. Code § 437c(p)(2).) 1) Statute of Limitations As to the statute of limitations, Gov't. Code § 911.2 requires that a claim for damages for any cause of action other than an action for death or personal injury should be made "not later than six months after the accrual of the cause of action." Upon presentation of the claim, the entity may: (1) reject the claim, (2) allow the claim, (3) allow or reject the claim in part, or (4) compromise the claim. (Gov't. Code § 912.6.) A plaintiff must commence a suit against the public entity no later than six months after the date the notice of rejection is personally delivered or deposited in the mail. (Gov't. Code § 945.6(a)(1).) However, if the public entity fails to provide written notice in accordance with the service requirements of section 913, a claimant has two years from the accrual of the cause of action to file suit. (Gov't. Code § 945.6(a)(2).) Defendant produced evidence that Defendant, through its claims administrator AdminSure, served a rejection of Plaintiff's claim on 03/20/24. (Santos Decl. ¶¶ 2, 8-18, Ex. B.) The Rejection complied with Gov't. Code § 913 and notified Plaintiff of the filing deadline for any lawsuit based upon the Claim. That Plaintiff claims she did not receive the rejection does not support overcoming the six month limitations period. (<i>Him v. City & Cnty. of San Francisco</i> (2005) 133 Cal. App. 4th 437, 445-46.) Defendant met its initial burden on the statute of limitations having run prior to the complaint being filed. Plaintiff argues Defendant is estopped from claiming the statute of limitations. "The elements of equitable estoppel have been applied in the government claims context. "(1) [T]he party to be estopped [here, the District] must be apprised of the facts; (2) he must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel had a right to believe it was so intended; (3) the other party [here, J.M.] must be ignorant of the true state of facts; and (4) he must rely upon the conduct to his injury."`" (<i>J.M. v. Huntington Beach Union High Sch. Dist.</i> (2017) 2 Cal. 5th 648, 656.) Plaintiff produced evidence Defendant was aware of the facts regarding the injury, claim, rejection, and limitations period, yet AdminSure staff allegedly told Plaintiff's

husband to send Plaintiff's updated medical records, that the claim would be reviewed, and then presented to Defendant. (Opp. Ex. A at 55:21-25 and 56:1-6; Ex. C at 29:18-31:9.) Plaintiff and her husband claimed they were unaware of the rejection or the impending limitations deadline and relied upon the statements made by AdminSure and did not file the complaint until after the deadline.

Plaintiff has produced sufficient evidence to create a triable issue of material fact regarding estoppel and the statute of limitations period. The statute of limitations argument does not support granting the motion.

2) Design Immunity

Defendant next argues design immunity pursuant to Gov't. Code § 830.6. "A public entity claiming design immunity must show the existence of three elements, "(1) [a] causal relationship between the plan and the accident; (2) discretionary approval of the plan prior to construction; [and] (3) substantial evidence supporting the reasonableness of the design.'" (*Grenier v. City of Irwindale* (1997) 57 Cal. App. 4th 931, 939.)

"Design immunity is an affirmative defense often raised on motion for summary judgment or nonsuit, enabling the trial court to find the defense established as a matter of law. [Citation omitted.] The first two elements, causation and discretionary approval, may only be resolved as issues of law if the facts are undisputed. [Citation omitted.] The third element, substantial evidence of reasonableness, requires only substantial evidence, that is, evidence of solid value which reasonably inspires confidence." [Emphasis added.] (*Id.*, at 939-40.)

"In many cases, the evidence of discretionary authority to approve a design decision is clear, or even undisputed. For example, "[a] detailed plan, drawn up by a competent engineering firm, and approved by a city engineer in the exercise of his or her discretionary authority, is persuasive evidence of the element of prior approval. [Citation omitted.] When the discretionary approval issue is disputed, however, as it was here, we must determine whether the person who approved the construction had the discretionary authority to do so." (*Martinez v. Cty. of Ventura* (2014) 225 Cal. App. 4th 364, 370-71.)

"The fact of approval by competent professionals can, in and of itself, establish the reasonableness element." (*Higgins v. State of California* (1997) 54 Cal. App. 4th 177, 187, abrogated by *Cornette v. Dep't of Transp.* (2001) 26 Cal. 4th 63.)

Defendant produced evidence there was a causal relationship between the trench gutter and the subject incident as Plaintiff alleged the trench gutter should have been covered but was not which resulted in Plaintiff's injury. (Houlihan Decl. ¶¶ 16-28, Ex. A.) The trench gutter as it existed at the time of the incident was the same as was designed, approved, and ultimately constructed by Defendant. (DSS Nos. 16, 20, 21.) The designers specifically

considered the trench gutter design and intentionally placed non-skid diamond patterns steel plate to be placed over the trench at the location of gates, but not up against the fence line. (DSS No. 20; Houlihan Decl., ¶¶ 19–28; Ex. A.) This suggests the designers considered the trench gutter and intentionally designed it not to be covered.

Defendant has met its burden of showing design immunity.

Plaintiff produced no evidence to counter that of Defendant. Instead, Plaintiff states Defendant's evidence does not address player safety, however the approval design immunity does not require the Defendant to provide the original analysis of the designers or whether they considered player safety or to the extent which player safety was considered.

Again, "[t]he fact of approval by competent professionals can, in and of itself, establish the reasonableness element." (*Higgins, supra*, 54 Cal. App. 4th at 187.) "[W]e read section 830.6 to mean that as long as reasonable minds can differ concerning whether a design should have been approved, then the governmental entity must be granted immunity. The statute does not require that property be perfectly designed, only that it be given a design which is reasonable under the circumstances. By deciding on a "reasonableness" standard, the Legislature intended that government officials be given extensive leeway in their decisions concerning public property. [¶] A governmental entity, such as the City, is entitled to rely on what is apparently competent advice in making legislative decisions. The fact that on hindsight that advice may prove to have been flawed is not a basis for imposing liability on the governmental entity. [¶] In this case, the City's engineer, along with the engineers and other officials of the county who were recognized as being competent in the design of highways, approved the design before it was adopted by the City." (*Ramirez v. City of Redondo Beach* (1987) 192 Cal. App. 3d 515, 525.)

That Defendant/AdminSure did not immediately know if the trench gutter had been designed to remain uncovered upon the submission of the Claim does not overcome that after investigation it was determined they were not designed to be covered.

As Plaintiff has not produced any admissible evidence opposing the design immunity and has not met her transferred burden of showing triable issues of material fact remain, the motion is **GRANTED** based on design immunity.

3) No Notice Regarding Any Dangerous Condition

"Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that [1] the property was in a dangerous condition at the time of the injury, [2] that the injury was proximately caused by the dangerous condition, [3] that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and [4] that either: (a) A negligent or wrongful act or omission of an

employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Gov’t Code § 835; *Cnty. of Ventura v. City of Camarillo* (1978) 80 Cal. App. 3d 1019, 1024–25.)

A “dangerous condition” is defined as, “[a] condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov’t Code § 830(a).)

“To establish “actual notice,” it is not enough to show that the state employees had a general knowledge that people do leave hot coals on public beaches. There must be some evidence that the employees had knowledge of the particular dangerous condition in question.” (*State v. Superior Ct. for San Mateo Cnty.* (1968) 263 Cal. App. 2d 396, 399.)

Here, Defendant produced evidence that prior to the incident, Defendant had never received any notices, injury claims, or complaints related to the subject tennis court or trench drain. (Alexander Decl. ¶¶ 14, 35-36, 60-77.) Defendant also never received any work orders related to the trench drain. (DSS No. 9.) Defendant’s central database regarding the trench gutter. (Alexander Decl. ¶¶ 72-73.) There were also no work orders requesting repairs, modification, reconstruction, warning signage, barriers, or other corrective measures relating to the trench gutter before the incident. (Alexander Decl. ¶¶ 74-78.) Other than Plaintiff’s post-incident claim, Defendant had not received any claims for injuries involving the subject tennis courts. (Shumway Decl. ¶¶ 10-11.) A third-party inspection company had inspected the courts approximately three months prior to the incident and had not indicated the trench drain was a hazard, dangerous condition, condition requiring repair, condition requiring replacement, or condition requiring modification. (Alexander Decl. ¶¶ 25-35.)

Defendant has met its burden of showing it had no actual notice of any alleged dangerous condition.

Regarding constructive notice, “[a] public entity has “constructive notice of a dangerous condition” “only if” (1) “the condition had existed for” some period of time prior to the plaintiff’s accident, and (2) “the condition ... was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” (§ 835.2, subd. (b); [Citation.]) “[If [a] defect ... presents no element of conspicuousness or notoriety, its continued existence does not impart notice to the municipality”]; [Citation.] The second element—that the defect be so “obvious,” “conspicuous[,]” or “notori[ous]” that it should have been discovered by the public entity [Citations] —is critical because it is the public entity’s failure to discover and repair an *obvious* defect that makes it appropriate to impute knowledge of that defect

to the entity, which is what renders that entity negligent for failing to correct a defect despite that imputed knowledge. [Citations.] Because it is the failure to discover and repair an obvious defect that renders the public entity negligent (and hence potentially liable for injuries caused by that defect), it becomes relevant whether (1) the entity had a "reasonably adequate" "inspection system" in place "to inform [it] whether the property was safe for the use or uses for which [it] used or intended others to use the public property and for uses that the public entity knew others were making of the public property" and (2) the entity "operated such an inspection system with due care" and *still* "did not discover the" defect. (§ 835.2, subd. (b).) Although constructive notice of a defect may be imputed to a public entity that fails to have a "reasonably adequate" inspection system [Citation.], constructive notice will *not* be imputed if the defect is not sufficiently obvious." (*Martinez v. City of Beverly Hills* (2021) 71 Cal. App. 5th 508, 519–20.)

" 'Thus, even though it is foreseeable that persons may use public property without due care, a public entity may not be held liable for failing to take precautions to protect such persons.' [Citation.] Any property can be dangerous if used in a sufficiently abnormal manner; a public entity is required only to make its property safe for reasonably foreseeable careful use." " (*Cnty. of San Diego v. Superior Ct.* (2015) 242 Cal. App. 4th 460, 468.) "Public entities do not have a duty to maintain or remove all items on public lands that could potentially pose hazards to individuals not exercising due care." (*Id.*, at 473.)

"The status of a condition as "dangerous" for purposes of the statutory definition does not depend on whether the plaintiff or other persons were actually exercising due care but on whether the condition of the property posed a substantial risk of injury to persons who were exercising due care." (*Cole v. Town of Los Gatos* (2012) 205 Cal. App. 4th 749, 768.)

" " "The existence of a dangerous condition is ordinarily a question of fact but 'can be decided as a matter of law if reasonable minds can come to only one conclusion.' " (*Mixon v. Pac. Gas & Elec. Co.* (2012) 207 Cal. App. 4th 124, 131.) "A dangerous condition exists when public property 'is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,' or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users." (*Id.*)

Again, Defendant produced evidence the trench gutter was constructed as designed and had existed for almost 50 years without any evidence of prior injuries or complaints. There was no evidence any staff had found the trench gutter to be dangerous. The third-party inspection company inspected the site and did not indicate the trench gutter was a dangerous condition.

Defendant has also met its initial burden regarding constructive notice. The burden transfers to Plaintiff to show Defendant had actual or constructive knowledge of the alleged defect.

		Plaintiff produced no evidence showing Defendant had prior actual notice of any alleged defect or issues with the trench gutter. Regarding constructive notice, Plaintiff produced no evidence regarding constructive knowledge other than the fact the trench gutter existed without change since 1975. No evidence was produced regarding it being a "dangerous condition." Plaintiff has not met the transferred burden on the notice issue. The motion is GRANTED based on lack of actual and/or constructive notice as well. Defendant to give notice.
7	Kwok v. Genera Corporation	Cont. to 9/28
8	Young v. FCA US, LLC	O/C
9	Ciotti vs. Public Storage Operating Company	Defendant Public Storage Operating Company's ("Defendant") motion to compel arbitration is GRANTED. "Under both the FAA and California law, arbitration agreements are valid, irrevocable, and enforceable, except upon such grounds that exist at law or in equity for voiding any contract. [Citation.] Such challenges to the validity of arbitration agreements can be divided into two types. [Citation.] One type specifically challenges the validity of the agreement to arbitrate. The second challenges the contract as a whole, either on a ground that directly affects the entire agreement or on the ground that the illegality of one of the contract's provisions renders the whole contract invalid. (<i>Ibid.</i>)" (<i>Winter v. Window Fashions Pros., Inc.</i> (2008) 166 Cal. App. 4th 943, 947 ("Winter").) "As a matter of federal law, arbitration clauses are "separable" from the contracts in which they are embedded.' " [Citation.] . . . a challenge to the arbitration clause itself must be decided by the court. [Citation.] Nevertheless, a court still must consider one type of challenge to the overall contract, i.e., a claim that the party resisting arbitration never actually agreed to be bound." (<i>Winter, supra</i>, 166 Cal. App. 4th at 947-48.) "Only 'generally applicable contract defenses, such as fraud, duress, or unconscionability, may be applied to invalidate arbitration agreements without contravening § 2 of the FAA." (<i>Giuliano v. Inland Empire Pers., Inc.</i> (2007) 149 Cal. App. 4th 1276, 1285 ("Giuliano").) "[W]e must broadly construe the phrase, "evidencing a transaction involving commerce," because the FAA "embodies Congress' intent to provide for the enforcement of arbitration agreements within the full reach of the Commerce Clause. Its general applicability reflects that '[t]he preeminent concern of Congress in passing the Act was to enforce private agreements into which parties had entered....' [Citation.] We have accordingly held that these agreements must be 'rigorously enforce[d].' [Citations.]" [Citation.] In determining whether the employment agreement involved interstate commerce, the parties' subjective intent is not the determining factor. "[E]videncing a transaction involving

commerce” (9 U.S.C. § 2) simply means that “the ‘transaction’ in fact ‘involv[e]’ interstate commerce, even if the parties did not contemplate an interstate commerce connection.” (Giuliano, *supra*, 149 Cal. App. 4th at 1286.)

On a motion to compel arbitration, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (*Brennan v. Opus Bank*, 796 F.3d 1125, 1130 (9th Cir. 2015).) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C.A. § 4; *Dean Witter Reynolds, Inc. v. Byrd*, 470 U.S. 213, 218 (1985) [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”])

“The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 (“*Engalla*”); *Green Tree Financial Corp.-Alabama v. Randolph* (2000) 531 U.S. 79, 91-92.)

Defendant has met its initial burden by producing a valid arbitration agreement, which covers the issues in Plaintiff’s Complaint. (Complaint, Ex. 1.; Gonzalez Decl., Ex. A.) The burden transfers to Plaintiff to show by a preponderance of the evidence any defense to the agreement. (*Engalla, supra*, 15 Cal.4th at 972.)

Plaintiff argues the Agreement was both procedurally and substantively unconscionable.

“The unconscionability doctrine has both procedural and substantive elements, “the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” [Citation.] Both must be shown for the defense to be established, but not necessarily in the same degree. [Citation.] We evaluate unconscionability on a sliding scale, so that the more substantively one-sided the contract term, the less evidence of procedural unconscionability is required to conclude that the term is unenforceable, and vice versa. [Citation.] “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” [Citation.] When unconscionability is shown, the trial court has discretion either to refuse to enforce the contract or to strike the unconscionable provision and enforce the remainder of the contract.” (*Davis v. Kozak* (2020) 53 Cal. App. 5th 897, 905.)

“Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the

subscribing party only the opportunity to adhere to the contract or reject it.' " (*Armendariz, supra*, 24 Cal.4th at p. 113.)

The contract and the arbitration agreement were standardized contracts, which do not appear to have permitted Plaintiff the ability to negotiate, which support minimal procedural unconscionability. Importantly Plaintiff was given the opportunity to opt out of the agreement as the terms of the agreement specifically permit opting out and provide Plaintiff with the method of opting out. (*Mohamed v. Uber Techs., Inc.*, 848 F.3d 1201, 1211 (9th Cir. 2016).) Plaintiff had reasonable opportunity to reject the agreement yet chose not to do so.

There is little showing of procedural unconscionability.

As to substantive unconscionability, "[i]t has long been recognized that substantive unconscionability is not susceptible to 'precise definition' " [Citation], and therefore our courts have used a wide variety of expressions to describe contractual provisions that are substantively unconscionable, including " ' ' ' ' 'overly harsh' ' ' " [citation], " ' ' ' ' 'unduly oppressive' " [citation], " ' ' ' ' 'so one-sided as to 'shock the conscience' ' ' " [citation], or "unfairly one-sided" [citation]' " [Citation.] Our Supreme Court recently clarified that "these formulations ... all mean the same thing." [Citation.] The essential notion they each capture is " ' ' ' ' 'that unconscionability requires a substantial degree of unfairness beyond "a simple old-fashioned bad bargain." ' ' ' " [Citation.] [¶] A contractual provision is not substantively unconscionable simply because it provides one side a greater benefit. The party with the greater bargaining power is permitted to require contractual provisions that provide it with additional protections if there is a legitimate commercial need for those protections, but the stronger party may not require additional protections merely to maximize its advantage over the weaker party. [Citations.] "As has been recognized ' ' ' ' 'unconscionability turns not only on a 'one-sided' result, but also on an absence of 'justification' for it." ' ' ' ' ' " (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal. App. 4th 227, 247–48.)

Plaintiff argues Defendant's retention of the lien sale, but requiring all other statutory and tort claims to be arbitrated is unconscionable. However, Defendant only retained the lien sale benefit, which is it permitted to do without entering substantive unconscionability. (*Carbajal, supra*, 245 Cal. App. 4th at 248.) There is nothing in the agreement that makes it so one-sided as to "shock the conscience" or that is "unfairly one-sided." as to "shock the conscience" or that is "unfairly one-sided." As there is no showing of substantive unconscionability, Plaintiff has not met the burden.

The motion is **GRANTED**, and parties are ordered to participate in arbitration pursuant to the terms of the contract. This matter is stayed pending the outcome of arbitration. (9 U.S.C. § 3.)

An OSC Re: Status of Contractual Arbitration is scheduled for 12/14/26 at 2:00 p.m. in Dept. N17.

		Defendant to give notice.
10	Burke v. Benworth Capital Partners, LLC	Before the Court is (1) a motion for attorney fees and costs on appeal filed by defendants Benworth Capital Partners, LLC and Bernardo Navarro; and (2) a motion for leave to file a second amended complaint filed by plaintiff Griffin Burke. For the reasons set forth below, the motion for attorney fees and costs is GRANTED in the total amount of \$41,512.21 and the motion for leave to file the second amended complaint is GRANTED. <u>Motion for Attorney Fees and Costs</u> Plaintiff's evidentiary objections are OVERRULED. <u>Timeliness</u>: The Court finds that the motion was timely filed pursuant to California Rules of Court, rule 3.1702. The 40-day statutory time limit was tolled during the Court-ordered stay of the entire case. (See generally, <i>Ocean Services Corp. v. Ventura Port Dist.</i> (1993) 15 Cal.App.4th 1762.) The stay of the case--requested by Plaintiff--ran from 10/18/24 until 5/7/26, when it was lifted by the Court upon Plaintiff's request. The motion for attorney fees was filed 36 days later. In addition, the Court finds good cause to extend the deadline. (Cal. Rules of Court, rule 31702(d); <i>Lewow v. Surfside III Condominium Owners' Assn., Inc.</i> (2012) 203 Cal.App.4th 128, 381; Declaration of Robert M. Shaughnessy ¶ 30.) <u>Entitlement to Fees</u>: As in trial court litigation, attorney fees on appeal are recoverable if authorized by contract, statute or law. (Code of Civ. Proc. § 1033.5, subd. (a)(10); <i>Butler-Rupp v. Lourdeaux</i> (2007) 154 Cal.App.4th 918, 927; <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 637.) On remand after issuance of the remittitur, the trial court determines entitlement and amount of attorney fees reasonably incurred on appeal. (<i>Butler-Rupp v. Lourdeaux, supra</i>, 154 Cal.App.4th at 925-928.) Here, the Court already determined Defendants are contractually entitled to recover fees and costs, when it granted Defendants' motion for attorney fees and costs at the trial level. (ROA 445.) <u>Reasonableness of Fees</u>: Reasonable attorney's fees authorized by contract shall be awarded to the prevailing party as "fixed by the court." (Civ. Code § 1717, subd. (a).) The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (<i>Bruckman v. Parliament Escrow Co.</i> (1989) 190 Cal.App.3d 1051, 1062.) Generally, courts employ the lodestar method to determine if attorney's fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1242.) The Court finds the hourly rate sought by Defendants at \$375, the time spent on the appeal, and time spent on this fee motion are all reasonable. The Court also finds the requested costs to be reasonable. Notably, Plaintiffs did not challenge the reasonableness of the fees and costs sought, thereby conceding the issue. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562,

566; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529.) The motion is therefore GRANTED in its entirety.

Motion for Leave to File Second Amended Complaint

The motion substantially complies with California Rules of Court, rule 3.1324, and there was no prejudicial delay. (Code of Civ. Proc. § 473, subd. (a)(1); *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [applying “a policy of great liberality in permitting amendments”]; see also Declaration of Griffin Burke ¶¶ 1-6.)

Defendants argue the proposed amendment is futile. While the court has discretion to deny leave to amend where a proposed amendment fails to state a cause of action, such denial is appropriate where the pleading is deficient as a matter of law and the defect cannot be cured by further amendment. (*California Cas. Gen. Ins. Co. v. Sup. Ct. (Gorgei)* (1985) 173 Cal.App.3d 274, 280-281, disapproved on other grounds by *Kransco v. American Empire Surplus Lines Inc. Co.* (2000) 23 Cal.4th 390, 407.) Here, there may be insufficient facts to support Plaintiff’s claims, but it cannot be said with certainty that the claims fail as a matter of law or that the defects cannot be cured.

Defendants next argue the proposed amendment seeks to add new causes of action not tethered to the original facts. In general, amended pleadings can set forth entirely different claims, add new parties, seek a different or greater remedy, etc. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 6:640.) If there is a statute of limitations problem, it must appear the amendment is “based on the same general set of facts pleaded in the original complaint.” (*Hobson v. Raychem Corp.* (1999) 73 Cal.App.4th 614, 626, disapproved on other grounds by *Colmenares v. Braemar Country Club, Inc.* (2003) 29 Cal.4th 1019; see also *Most Worshipful Sons of Light Grand Lodge Ancient Free and Accepted Masons v. Sons of Light Lodge No. 9* (1958) 160 Cal.App.2d 560, 564; *Bonded Prods. Co. v. R.C. Gallyon Constr. Co.* (1964) 228 Cal.App.2d 186, 189.) Here, however, it is not clear Plaintiff’s new claims have a statute of limitations problem.

Defendants argue the proposed SAC is a sham pleading. The court has discretion to deny leave where the proposed amendment omits or contradicts harmful facts pleaded in the original pleading, absent a showing of mistake or other sufficient excuse for changing the facts. (*Vallejo Develop. Co. v. Beck Develop. Co.* (1994) 24 Cal.App.4th 929, 946; *State of Calif. ex. rel. Metz v. CCC Information Services, Inc.* (2007) 149 Cal.App.4th 402, 412.) Here, the prior version of the proposed amended SAC alleged Benworth PR and Claudia Navarro are the alter ego and/or in privity with the original defendants. (ROA 283 – proposed SAC at ¶¶ 2-8.) These facts are omitted from the new proposed SAC, but they are not material or harmful in light of the new allegations of post-judgment conduct. The motion is therefore GRANTED.

Counsel for Defendants shall give notice of this ruling.

11	Saracino v. Rzakhanova	The unopposed demurrer of defendant Gulzhanat Rzakhanova (Defendant) directed to the complaint of plaintiffs Katalena Saracino and Mohammed Awad (collectively, Plaintiffs) is SUSTAINED with 20 days leave to amend. The motion to strike is MOOT. Defendant is correct that the complaint is uncertain as paragraph 50 recites summarily that Plaintiffs are asserting causes of action for fraud, defamation, intentional infliction of emotional distress, invasion of privacy, negligence, and trespass and conversion, but the pleading contains no separately captioned counts and no identification of which Plaintiff asserts which claim. Thus, Defendant cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against her. (<i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616.) This defect also renders the complaint in violation of California Rules of Court, rule 2.112, which requires each cause of action to be stated by its number, its nature, the party asserting it if more than one party is represented on the pleading, and the party or parties to whom it is directed. (See CRC 2.112.) Plaintiffs failed to oppose the demurrer. As such, Plaintiffs implicitly conceded the demurrer's merit. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) Additionally, the Court notes that Plaintiffs attempted to file an amended complaint on September 2, 2026, but the filing was rejected as it was untimely filed and leave of court was thus required. (See Notice of Rejection at ROA 67; see also Code Civ. Proc., § 472(a).) It thus appears Plaintiffs are in agreement an amended complaint is needed. Accordingly, the demurrer based on uncertainty is SUSTAINED with 20 days leave to amend. The Court does not reach Defendant's remaining arguments at this time. Defendant's request for judicial notice is DENIED. (<i>Center for Community Action & Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].) Given the ruling to sustain the demurrer with leave to amend, the motion to strike is MOOT. Defendant shall give notice.
12	Daniels v. Lennar Homes of California	Counsel Sultana S. Kelantan's of Libra Law Firm's motion to be relieved as counsel of record for plaintiffs Eian Daniels and Arely Ramirez is CONTINUED to October 12, 2026, at 2:00 p.m. in Department N17. There is no proof of service showing the motions and supporting papers were served on the clients. (Cal. Rules of Court, rule 3.1362(d); Code of Civ. Proc. § 1005, subdivision (b).) At least 7 days before the next hearing date, counsel shall file a proof of service. Counsel for Plaintiffs shall give notice of this ruling.

13	Lee v. Troung	O/C
14	Mahgerefteh v. Garza	No tentative.
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